

25STCP04406 25STCP04406

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-06-24

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Case Number: 25STCP04406 Hearing Date: June 24, 2026 Dept: 514

Zehnaly v. Zehnaly

25STCP04406

Plaintiff's Demurrer to Answer of Defendant

Tentative Ruling

The demurrer is overruled.

Background

On November 14, 2025, Armen

Zehnaly ("Plaintiff") filed the complaint in this action against Ghazar

Zehnaly, individually and as trustee of the 2011 Zehnaly Family Trust dated

January 21, 2011, ("Defendant") and J.P. Morgan Chase Bank, N.A., and Does 1 through

100, asserting causes of action for (1) breach of fiduciary duty, (2) conversion,

(3) violation of Penal Code section 496, subdivision (a), (4) partition, and

(5) dissolution of partnership.

After the Court overruled Defendant's

demurrer to the complaint, Defendant filed an answer on April 6, 2026. On the same day, Defendant filed a cross-complaint against Plaintiff and Roes 1 through 100, asserting causes of action for (1) elder abuse, (2) conversion, (3) breach of fiduciary duty, (4) violation of Penal Code section 496, (5) inducing breach of contract, (6) interference with contractual relations, (7) interference with prospective business advantage, and (8) negligence.

Plaintiff filed an answer to the

Cross-Complaint on May 8, 2026.

Currently before the Court and set for

hearing on June 24 is a demurrer that Plaintiff filed to Defendant's answer to

the complaint. On June 2, Defendant

filed an opposition, and Plaintiff filed a reply on June 8.

The hearing was initially set for June 15 and

was continued to June 24, 2026.

No trial date has been set.

Legal Standard

A demurrer to an answer, although rare, is authorized by Code

of Civil Procedure section 430.20. The

demurrer may be brought on the ground that the answer "does not state facts

sufficient to constitute a defense," that the answer is "uncertain," or that

when an answer pleads a contract “it cannot be ascertained from the answer

whether the contract is written or oral.”

(Code Civ. Proc., § 430.20, subds. (a)-(c).)

Meet

and Confer

Before filing a demurrer, “the

demurring party shall meet and confer in person or by telephone with the party

who filed the pleading that is subject to demurrer for the purpose of

determining whether an agreement can be reached that would resolve the

objections to be raised in the demurrer.” (Code Civ. Proc. § 430.41, subd.

(a).) The Court has considered the

evidence from each side and determines that the statutory requirement is satisfied.

Discussion

Plaintiff

demurs to each and every one of the 54 affirmative defenses in Defendant’s

answer. Plaintiff argues that none of

the 54 defenses is adequately supported by factual allegations (Mem., at p. 3);

that none of the 54 defenses identifies which affirmative defense is asserted

against which cause of action in the complaint (Mem., at pp. 3-4); and that the

Fourth through Twenty-Second Affirmative Defenses sounds in contract but it

cannot be ascertained whether the contract is in writing or oral (Mem., at p.

4.)

The Court has

reviewed the answer and determines that each of the affirmative defenses is

adequately pleaded. To the extent that

Plaintiff seeks additional information regarding the evidentiary support for

the affirmative defenses, Plaintiff may propound appropriate discovery,

including (at an appropriate time), but not limited to, Form Interrogatory

15.1.

The demurrer

is overruled.

Conclusion

The

Court OVERRULES the demurrer of Plaintiff Armen Zehnaly to Defendant's demurrer.

Moving

party is ordered to give notice.